

I. Request

The Office of the Secretary of State for the Presidency of the Council of Ministers submitted to the National Data Protection Commission (CNPd), for opinion, the draft Decree-Law (Project) that establishes the legal regime for electric mobility applicable to the organization, access, and exercise of activities related to electric mobility in accordance with the provisions of Regulation (EU) 2023/1804 - MIH.

The CNPD issues an opinion within the scope of its powers and competencies as an independent administrative authority with the authority to oversee the processing of personal data, conferred by paragraph c) of no. 1 of article 57, in conjunction with paragraph b) of no. 3 of article 58, and with no. 4 of article 36, all of Regulation (EU) 2016/679, of April 27, 2016 – General Data Protection Regulation (hereinafter GDPR), in conjunction with the provisions of article 3, in no. 2 of article 4, and in paragraph a) of no. 1 of article 6, all of Law no. 58/2019, of August 8, which implements the GDPR in the internal legal order.

II. Analysis

3. According to the preamble, "With the approval of this legal regime, the Government aims to promote sustainable mobility centered on people and, consequently, on users of electric vehicles, with the goal of strengthening the conditions that contribute to improving the final charging experience. In this circumstance, the Government is committed to promoting market liberalization in order to ensure universal access to all charging points, thereby better serving users and making the model simpler, more flexible, more transparent, and more accessible.

Considering the aforementioned framework, combined with the approval and entry into force of Regulation (EU) 2023/1804 of the European Parliament and of the Council, of September 13, 2023, regarding the establishment of an infrastructure for alternative fuels (AFIR Regulation), it becomes necessary to review the legal regime of electric mobility, approved by Decree-Law no. 39/2010, of April 26 (RJME), with a view to adapting the Portuguese electric mobility model to the regulatory framework of the European Union."

4. Thus, this Decree-Law aims to simplify the use of charging points by users of electric vehicles, implement effective territorial coverage, promote market liberalization, and simplify the activities of the electric mobility system with the objective of facilitating and improving the final electric vehicle charging experience for users, ensuring universal access to all charging points.

This draft Decree-Law partially implements, in the internal legal order, Regulation (EU) 2023/1804 of the European Parliament and of the Council of September 13, 2023, regarding the establishment of an infrastructure for alternative fuels and which repeals Directive 2014/94/EU (AFIR Regulation). Thus, the Project establishes the conditions to promote and facilitate the use of electric charging points, namely through the adoption of rules that encourage and facilitate the charging of electric vehicles; the adoption of rules that enable the existence of electric vehicle charging points, including heavy goods and passenger road vehicles, and electric waterborne, maritime, and river vessels for goods or passengers; the adoption of rules that ensure adequate infrastructure for the installation of electric vehicle charging points; and the adoption of rules that allow users of electric vehicle charging infrastructure to access any charging point, in accordance with the principle of universal access.

Although it is evident that the application of this Decree-Law will result in numerous processing of personal data, the Diploma under analysis refers the essential aspects to subsequent regulation. Let us see:

According to article 4 of the Project, the main activities aimed at ensuring electric mobility include: the operation of electric vehicle charging points, which corresponds to the installation, availability, operation, management, and operation of charging points, in accordance with applicable technical and safety requirements; the provision of electric mobility services, which corresponds to the provision of services to UVE, including electric charging, as defined in the AFIR Regulation; the management of

electronic roaming platforms; and the aggregation and transmission of electric mobility data to the National Access Point.

Now, the exercise of these activities is subject to regulation, under the terms and conditions provided in this draft Decree-Law, in the respective regulation, and in Regulation no. 854/2019, of November 4, in its current wording, of the Regulatory Authority for Energy Services (ERSE). Thus, the CNPD reserves its analysis for when the regulation to be carried out by ERSE is drafted. In this regard, we recall opinion no. 19/52, of September 3, 2019, issued by the CNPD on the draft regulation of electric mobility at the request of ERSE.

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The Project also refers to the Order of the Government member responsible for the energy sector for the definition of the qualification requirements for the issuance of a license to operate electric vehicle charging points.

Similarly, it refers to the Order of the Government member responsible for the energy sector for the definition of the rules applicable to the installation and operation of electric vehicle charging points. In turn, under the terms of Article 10, the exercise of the activity of operating electric vehicle charging points depends on the granting of a license issued by the Directorate-General for Energy and Geology (DGEG), subject to compliance with the requirements and qualifications to be defined in the order of the Government member responsible for the energy sector.

It should be noted that in Article 11, regarding the operation license for charging points, it is provided that the application for the granting or extension of the OPC license is submitted electronically and depends on the presentation of a request at the electronic single desk of the services, which must include proof of the existence of the insurance policy, under the terms of Article 27; the elements provided for in the order referred to in paragraph 1 of the previous article; and the private use license of the public domain, provided for in Article 20, if applicable.

Likewise, Article 19 of the Project states that "the provision of electric mobility data by OPC to EADME, and the aggregation and transmission of this data by EADME to the National Access Point are regulated by an order to be approved by the Government members responsible for the areas of mobility and energy."

It also refers to the Order of the Government members responsible for the areas of infrastructure, mobility, and energy, to establish the definition of the rules applicable to the installation and operation of charging points, particularly regarding technical and safety matters – cf. Article 28.

Regarding the exercise of the activity of operating electric vehicle charging points for aquatic vehicles, this is free and depends on a license to be issued by the DGEG, whose granting presupposes compliance with the requirements and qualifications provided for in an order to be approved by the Government members responsible for the areas of infrastructure, mobility, and energy. Cf. paragraph 2 of Article 29.

It is important to emphasize that although the application of the provisions of the Project under review results in numerous treatments of personal data related to electric vehicle users (namely data on consumption of charging points, billing data, and location data) subject to the rules of the GDPR, the Project does not specify or regulate, in its provisions, the treatment of personal data, deferring the essential aspects of its regime for subsequent regulation.

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In these terms, the CNPD reserves its analysis of the personal data treatments arising from it for the moment of appreciation of these normative instruments.

III.

Conclusion

Since the diploma under review does not regulate or make any reference to the treatments of personal data resulting from its application (which must comply with the provisions of the GDPR) and defers the main aspects of its regime for subsequent regulation, the CNPD reserves the analysis of their

compliance with the legal regime for the protection of personal data for the moment of appreciation of these normative instruments.

Lisbon, March 14, 2025

Maria Cândida Guedes de Oliveira (Reporter)

MARIA

CÂNDIDA

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Digitally signed by MARIA

CÂNDIDA OLIVEIRA

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